

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TONY SWITZER,

Plaintiff,

Index No.

-v-

SUMMONS

THE CITY OF NEW YORK, Bronx County District Attorney Investigator JOHN and JANE DOE 1-5, NYPD Detective ENRIQUE MARILES (Shield No. 2948), NYPD Detective DOMINIC ROBINSON (Shield No. 6922), NYPD Police Officer (P.O.) John and Jane Doe 1 – 5, in their individual capacities.

Plaintiff designates Bronx County as the County of Venue

Venue is based upon location where claims arose.

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiff's attorney, at his address stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of Bronx. This action is brought in the County of Bronx because it is the place in which one or more defendants to this action reside.

Dated: January 8, 2021
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin

TO:

The City of New York
New York City Law Department
100 Church Street
New York, NY 10007

NYPD Detective Enrique Mariles (Shield No. 2948)
c/o NYPD Headquarters
1 Police Plaza
New York, NY 10007

NYPD Detective Dominic Robinson (Shield No. 6922)
c/o Bronx Homicide Squad
1086 Simpson St.
Bronx, NY 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TONY SWITZER,

Plaintiff,

**VERIFIED COMPLAINT AND
DEMAND FOR A JURY TRIAL**

-v-

Index No.

THE CITY OF NEW YORK, Bronx County District
Attorney Investigator JOHN and JANE DOE 1-5, NYPD
Detective ENRIQUE MARILES (Shield No. 2948),
NYPD Detective DOMINIC ROBINSON (Shield No.
6922), NYPD Police Officer (P.O.) John and Jane Doe 1
– 5, in their individual capacities.

Defendants.
-----X

Plaintiff Tony Switzer, through his attorneys Beldock Levine & Hoffman, LLP, as and for
his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. The is a civil rights action brought to vindicate Plaintiff's rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with claims under the laws of the State of New York.

2. Plaintiff's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally and without any legal basis seized, detained, arrested, and searched him, and members of the Bronx District Attorney's office pursued a malicious prosecution against him.

3. By reason of defendants' actions, including their unreasonable and unlawful searches and seizures, Plaintiff was imprisoned for six months and three days for a crime he did not commit, and was deprived of his constitutional rights.

4. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

5. The action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth, and Fourteenth Amendments to the Constitution of the United States.

6. Pursuant to New York State General Municipal Law § 50-e, plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2020PI000727.

7. Plaintiff attended an examination pursuant to New York State General Municipal Law § 50-h on August 5, 2020.

8. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

9. Venue is properly laid in the Supreme Court of the State of New York, County of Bronx because the Plaintiff resides in Bronx County, a substantial part of the events giving rise to Plaintiff's claims occurred in Bronx County, and defendants regularly and substantially conduct business in Kings County. C.P.L.R. § 503 (a) and (b).

10. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

11. Plaintiff was at all times relevant to the action, a resident of Bronx County in the State of New York.

12. Defendant the City of New York ("City") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately

responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

13. The Bronx DA's Office was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York to investigate and prosecute criminal conduct within Bronx County.

14. Defendants Bronx County Investigator John and Jane Doe 1 – 5 are and were at all times relevant herein, officers, employees, and agents of the Bronx DA's Office, acting under color of law and in their individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. They are entitled to indemnification under New York General Municipal Law Section 50-k. They are being sued in their individual capacity.

15. Defendant NYPD Detective ("Det.") Enrique Mariles (Shield No. 2948) was at all times relevant to this Complaint a duly appointed and acting Detective of the NYPD, Bronx Homicide Task Force, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

16. Defendant NYPD Det. Dominic Robinson (Shield No. 6922) was at all times relevant to this Complaint a duly appointed and acting Detective of the NYPD, Bronx Homicide Task Force, acting under color of law and in his individual capacity within the scope of employment pursuant to the statutes ordinances, regulations, policies, customs, and usage of the

City of New York and the State of New York. He is entitled to indemnification under New York General Municipal Law Section 50-k. He is being sued in his individual capacity.

17. Defendants NYPD Police Officer (“P.O.”) John and Jane Doe 1 – 5 are and were at all times relevant herein, officers, employees, and agents of the NYPD, acting under color of law and in their individual capacity within the scope of employment pursuant to the statutes, ordinances, regulations, policies, customs, and usage of the City of New York and the State of New York. They are entitled to indemnification under New York General Municipal Law Section 50-k. They are being sued in their individual capacity.

18. The Individual Defendants’ (defendants other than the City of New York) acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Plaintiff’s rights.

19. At all relevant times, the Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

20. On January 9, 2019, at approximately 9:00 a.m., Mr. Switzer was visiting the courthouse at 100 Centre Street in New York, NY.

21. While Plaintiff was sitting in the hallway on the 14th Floor of 100 Centre Street, Defendants Det. Enrique Mariles and Det. Dominic Robinson, of the Bronx Homicide Task Force entered the waiting area and detained Plaintiff.

22. Without advising Plaintiff of his *Miranda* rights, Defendants Det. Mariles and Det. Robinson proceeded to question Mr. Switzer with respect to a homicide that had occurred a month earlier on December 9, 2018.

23. Thereafter, without a reasonable basis to believe Mr. Switzer was involved in the crime, Defendants Det. Mariles and Det. Robinson forcefully arrested Mr. Switzer and transported him to the NYPD 46th precinct in the Bronx.

24. Upon information and belief, Defendants Det. Mariles and Det. Robinson falsely informed Mr. Switzer that they were taking him to the precinct merely to ask him more questions.

25. At the NYPD 46th precinct, NYPD P.O. John and Jane Doe 1-5 photographed, fingerprinted, and searched Mr. Switzer, and told him that he was being charged with the murder of an individual named Marion Vaughn, also known as Kevin Bon.

26. Mr. Switzer was not in any way involved in the tragic crime against Mr. Vaughn, and detectives did not have physical evidence to connect Mr. Switzer to the crime.

27. On January 10, 2019, Mr. Switzer was transported to the Bronx Criminal Court, where he was arraigned and remanded to the Vernon C. Bain Correctional Center.

28. As a result of Defendants' intentional, deliberately indifferent, reckless, and negligent conduct, Mr. Switzer was unlawfully imprisoned for 6 months and 3 days for a crime he did not commit.

29. Mr. Switzer was released on bail on July 12, 2019 and continued to defend his case for approximately three more months.

30. On October 11, 2019, after more than nine months of paying for a crime he did not commit, all charges in the indictment against Mr. Switzer were dismissed.

31. On information and belief, defendants knew they did not have credible evidence upon which to prosecute Mr. Switzer but initiated and maintained his prosecution despite this knowledge.

Bronx DA's Office Investigation

32. Upon information and belief, the Defendants was fully apprised of the activities of the detectives and participated in and provided oversight and guidance to the detectives conducting the investigation.

33. Upon information and belief, the Defendants intentionally did not advise the grand jury of the prosecution witness's contradicting statements that impacted the witness's credibility.

34. Upon information and belief, the Defendants intentionally misled or did not advise the grand jury regarding other exculpatory information, including the statements of several witnesses to first responders at the scene, who stated that a group of five, six, or seven males attacked the victim.

35. Following the grand jury's determination, the Defendants proceeded to intentionally ignore exculpatory material in his possession.

36. In February and March 2019, the Defendants received at least two latent print reports that excluded Mr. Switzer's fingerprints from key evidence items found at the crime scene.

37. In addition, the Defendants received several OCME Forensic Biology Reports beginning in May 2019 which compared Mr. Switzer's DNA against DNA found on key evidence items from the crime scene and excluded Mr. Switzer as the source of the DNA on those items.

38. Despite the lack of fingerprint and DNA evidence the Defendants did not takes steps to dismiss the indictment against Mr. Switzer, who continued to languish in jail.

39. Nor did the Defendants cause the dismissal of the indictment after receiving witness statements in April 2019 identifying two new suspects, and after an "i-card" was issued for one of those individuals.

40. In June 2019, the Defendants received another OCME Forensic Biology Report that found a match between the DNA on a knife handle found at the crime scene and an individual other than Mr. Switzer.

41. Shortly thereafter, the Defendants received a letter dated July 24, 2019 from the Division of Criminal Justice Services to the Office of the Chief Medical Examiner, stating that an association was found between DNA at the crime scene and the DNA of a convicted offender who had not yet been investigated in connection with the murder of Marion Vaughn.

42. Despite the new evidence, Defendants did not move to dismiss the indictment against Mr. Switzer until October 9, 2019.

43. Defendants, through their unlawful actions, violated Plaintiff's constitutional rights and common law rights and caused him pain, suffering, and extreme mental anguish.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the Individual Defendants)***

44. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein. Plaintiff realleges and incorporates by reference each and every allegation set forth in the foregoing paragraphs as if fully set forth herein.

45. In committing the acts and omissions complained of herein, the Individual Defendants acted under color of state law to deprive Plaintiff of certain constitutionally protected rights under the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, but not limited to:

- a. freedom from unreasonable search and seizure;
- b. freedom from arrest without probable cause;

c. the right to be free from false imprisonment, that being wrongful detention without good faith, reasonable suspicion, or legal justification, and of which detention Plaintiff was aware and to which he did not consent;

d. freedom from malicious prosecution by police, that being prosecution without probable cause that is instituted with malice and that ultimately terminated in plaintiff's favor;

e. freedom of the enjoyment of equal protection, privileges and immunities under the laws;

f. freedom from having defendants fabricate evidence; and

g. defendants failed to intervene and stop the afore enumerated constitutional violations.

46. In committing the acts and omissions complained of herein, the Individual Defendants breached their affirmative duty to intervene to protect the constitutional rights of citizens from infringement by other law enforcement officers in their presence.

47. As a direct and proximate result of the Individual Defendants' deprivation of Plaintiff's constitutional rights, Plaintiff suffered the injuries and damages set forth above.

48. The unlawful conduct of the Individual Defendants was willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS –
42 U.S.C. § 1983
(Against defendant the City of New York)

49. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

50. At all times material to the complaint, Defendant The City of New York had *de facto* policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.

51. At all times material to the complaint, Defendant The City of New York failed to properly train, screen, supervise, or discipline its employees, investigators at the Bronx DA's office and NYPD police officers, including Individual Defendants, and failed to inform the Individual Defendants' supervisors of their need to train, screen, supervise or discipline the Individual Defendants.

52. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of Plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth, Fifth, and Fourteenth Amendments.

53. As a result of the foregoing, Plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

THIRD CLAIM
RESPONDEAT SUPERIOR LIABILITY OF THE CITY OF NEW YORK FOR STATE
LAW VIOLATIONS

54. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

55. The conduct of Defendants NYPD Det. Enrique Mariles, NYPD Det. Dominic Robinson, NYPD P.O. John and Jane Doe 1 – 5, alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as New York City police officers, and/or while they were acting as agents and employees of

Defendant The City of New York, clothed with and/or invoking state power and/or authority, and, as a result, Defendant The City of New York is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

56. The conduct of Defendants alleged herein, occurred while Defendants were on duty and/or in and during the course and scope of their duties and functions as investigators, while they were acting as agents and employees of Defendant The City of New York, clothed with and/or invoking state power and/or authority, and, as a result, Defendant The City of New York is liable to Plaintiff pursuant to the state common law doctrine of *respondeat superior*.

57. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

FOURTH CLAIM
ASSAULT AND BATTERY

58. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

59. By the actions described above, Defendants did inflict assault and battery upon Plaintiff. The acts and conduct of defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

60. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

///

FIFTH CLAIM
FALSE ARREST and FALSE IMPRISONMENT

61. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

62. By the actions described above, Defendants caused to be falsely arrested and imprisoned, or falsely arrested and imprisoned, Plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

63. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

SIXTH CLAIM
INTENTIONAL and NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

64. The Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

65. By the actions described above, Defendants engaged in extreme and outrageous conduct, which intentionally and/or negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

66. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured.

**SEVENTH CLAIM
NEGLIGENCE**

67. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

68. Defendants, jointly and severally, negligently caused injuries, emotional distress and damage to Plaintiff. The acts and conduct of Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**EIGHT CLAIM
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING**

70. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

71. Defendant the City of New York negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated their statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. As a result of the foregoing, Plaintiff was deprived of their liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

NINTH CLAIM
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION

73. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

74. Plaintiff were deprived of their right to be free from unreasonable searches and seizures, in violation of New York State Constitution Article 1, § 12.

JURY DEMAND

75. Plaintiff demands a trial by jury in their action on each and every one of their damage claims.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That they be compensated for violation of their constitutional rights, pain, suffering, mental anguish and humiliation;
- b. That they be awarded punitive damages against the Individual Defendants;
- c. That he be compensated for attorneys' fees and the costs and disbursements of their action;

///

- d. For such other further and different relief as to the Court may seem just and proper.

Dated: January 8, 2021
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin

ATTORNEY'S VERIFICATION

I, David B. Rankin, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: January 8, 2021
New York, New York

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN, LLP
99 Park Avenue, PH/26th Floor
New York, New York 10016
t: 212-277-5825
e: drankin@blhny.com
Attorneys for Plaintiff



By: _____
David B. Rankin